

5.Right to Equality Under Article 14

5.1 Introduction

- The right to equality is explained in Articles 14 to 18 of the Indian Constitution.
 - Article 14 talks about the rule of law, and Articles 15 to 18 explain how this rule is applied.
 - The Preamble (introduction) of the Constitution promises equality for everyone.
 - Equality is an important and permanent part of the Constitution.
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5.2 Article 14 - Equality Before the Law

- Article 14 says that everyone will be treated equally by the law in India.
 - It means the government must treat people in the same situation in the same way.
 - It also says that people should be treated differently if their situations are different, whether they are Indian citizens or not.
 - **Two important phrases in Article 14:**
 - Equality before the law
 - Equal protection of the laws
 - These two phrases look similar but have different meanings.
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- "Equality before the law" comes from English Common Law.
 - It means that everyone is equal under the law and the law will be applied equally.
 - "Equal protection of the laws" comes from the U.S. Constitution.
 - It means the law will protect people equally, depending on the situation.
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- Equality before the law is about not giving special treatment — it's a negative concept.
- Equal protection of the laws is about giving help where needed — it's a positive concept.
- This rule of equality also applies to the law-making process (legislature).



- If the government makes a law that goes against Fundamental Rights, the courts can declare it unconstitutional.
 - **Equal protection of the laws means:**
 - People in similar situations should get similar treatment.
 - They should get the same rights, privileges, and punishments.
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- Both the rules about how laws are made and how laws should be fair come from Article 14.
- Article 14 also means the government must take special steps to help people get equal opportunities.
- **Article 14 applies to everyone, including:**
 - Companies, organizations, Indian and foreign citizens, and even legal entities (like businesses).
- But this rule doesn't apply to certain groups in special cases.
 - For example, Article 361 is a special exception.

It says the President or Governors can't be taken to court for doing their official work.
- Article 14 doesn't mean that exactly the same law must apply to everyone.
 - This is because people are not all in the same situation — by nature, status, or life circumstances.
- The article bans class-based laws that give unfair advantages to certain groups without reason.
 - But it allows fair classification if it's for a specific, useful purpose.
- For any classification to be fair, two conditions must be met:
 - The classification must be based on a clear difference that separates some people or things from others left out of the group.
 - That difference must be logically related to the goal the law wants to achieve.
- So, there must be a clear connection between the difference and the goal.
 - Otherwise, the classification might look random or unfair.
- Article 14 mainly focuses on removing arbitrariness (random, logicless or unfair decisions).
 - Any unfair or random action goes against the idea of equality.
- The rule of classification used by courts is not exactly what Article 14 says.
 - It's a judicial idea (created by courts) to check if a law or government action is arbitrary and therefore unconstitutional.
- This idea of fairness and non-arbitrariness is part of the entire Constitution.



- It's like a golden thread that runs through the whole legal system.
- In the Menaka Gandhi case, the court said that:
 - Article 14 should not be limited only to the classification rule.
 - The main focus should be on checking whether the government action was arbitrary.
 - So, classification is just a tool — not the only rule — to see if something is unfair.

5.3 Article 15 – Social Equality and Equal Access to Public Areas

- Article 15 says no one can be treated unfairly just because of their religion, race, caste, sex, or place of birth.
- Everyone should have the same right to enter and use public places like parks, museums, wells, or bathing areas.
- The government can make special rules to support women and children.
- Article 15(4) allows the government to help socially and educationally backward groups, like Scheduled Castes (SCs) or Scheduled Tribes (STs).
- To use Article 15(4), a group must be both socially and educationally backward. Just being from a particular caste is not enough.
- The rules under Article 15(4) don't have to be passed as laws in the legislature — they can also be issued as executive orders.
- In general, special help (reservations) given should be less than 50%, but it depends on the situation.
- The court said that weaker sections of society must be protected, and the rules must be made to match the needs of the whole country.
- Article 15(4) is not a rule that forces the government to act — it just gives permission to take helpful steps if needed.

5.4 Article 16 – Equality in Matters of public Employment

- **Equal Opportunity:**
Everyone has the right to apply for government jobs. No one should be discriminated against in public job opportunities.
- **No Discrimination:**
The State cannot discriminate based on religion, race, caste, sex, place of birth, or residence when giving government jobs.
- **Qualifications Allowed:**



The government can set educational and skill requirements for any job. That is not considered discrimination.

- **Reservation for Backward Classes:**

The government can reserve some jobs for backward classes who are not well-represented in government jobs.

- **Local Needs:**

Jobs may be reserved for locals who know the language and area well – for better service.

- **Reservation for Weaker Sections:**

SCs, STs, and other backward communities may also get special reservation to support the weaker sections of society.

- **Religion-based Jobs:**

In religious institutions, a law can say that only a person of that religion can hold a post. But this does not apply to foreign citizens.

- **Indra Sawhney (Mandal) Case Highlights:**

- Creamy layer (rich people among backward classes) must be excluded from reservation.
- Reservation should not cross 50% total.
- No reservation in promotions, only during initial hiring.
- Article 16(4) is a separate clause, not an exception.
- Backward classes under 16(4) ≠ Socially/Educationally Backward under 15(5).
- Backward classes can be divided into more backward and less backward for fair benefit.

5.5 Article 17 – Abolition of Untouchability

- Article 17 of the Indian Constitution says untouchability is not allowed.
- Practicing untouchability is a crime, and anyone doing it can be punished by law.
- This was one of the first steps taken by the government for social change.
- Because the Article treats untouchability as a serious crime, the government passed the Protection of Civil Rights Act, 1955 (earlier called the Untouchability (Offences) Act, 1955) to punish people who practice it.
- The word "untouchability" is not clearly defined in Article 17 or in the 1955 law.
- The word "untouchability" is not used in a regular or grammar-based way in the Article.
- It refers to discrimination based on caste, especially against people born into lower castes, and not based on how someone behaves.



- The word "Harijan" (a name used for people from lower castes) is often used to refer to an untouchable person.
- Untouchability is part of the caste system, and it doesn't depend on a person's intention. ("Men's rea" means guilty mind or intention.)

5.6 Article 18 – Abolition of Titles

- Article 18 says that the government cannot give any titles to people.
- Indians are not allowed to accept titles from other countries either.
- During British rule, titles like "Rai Bahadur" and "Khan Bahadur" were given to some people. These types of titles are now banned.
- But military and education-related titles (like Major, Doctor) are allowed.
- Awards like 'Bharat Ratna' and 'Padma Vibhushan' can be given, but they cannot be used as titles in front of names (like "Bharat Ratna Rahul").
- The Supreme Court said on 15 December 1995 that these awards are valid, but still should not be used as titles.

